



Controlled Drugs (Penalties) Act 1985

1985 CHAPTER 39

An Act to increase the penalties for certain offences relating to controlled drugs within the meaning of the Misuse of Drugs Act 1971. [16th July 1985]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In the entries in Schedule 4 to the Misuse of Drugs Act 1971 showing the punishment which may be imposed where a Class A drug is involved on persons convicted of offences under sections 4(2), 4(3) and 5(3) of that Act (production, supply and possession with intent to supply) for “14 years” there shall be substituted “Life”.

Life imprisonment for Class A drug offences.
1971 c. 38.

(2) In paragraph 1 of Schedule 1 to the Customs and Excise Management Act 1979 (punishments for controlled drug offences) the following paragraph shall be substituted for the paragraph set out as paragraph (b) of sections 50(4), 68(3) and 170(3)—

“(b) on conviction on indictment—

(i) where the goods were a Class A drug, to a penalty of any amount, or to imprisonment for life, or to both; and

(ii) where they were a Class B drug, to a penalty of any amount, or to imprisonment for a term not exceeding 14 years, or to both.”.

Commence-
ment.

2.—(1) This Act shall come into force at the end of the period of two months beginning with the day on which it is passed.

(2) Nothing in this Act shall affect the punishment for an offence committed before this Act comes into force.

Short title
and extent.

3.—(1) This Act may be cited as the Controlled Drugs (Penalties) Act 1985.

(2) This Act extends to Northern Ireland.